

The Punjab Agricultural Produce Markets (Amendment) Act, 2005

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[The Punjab Agricultural Produce Markets \(Amendment\) Act, 2005](#)

[Published vide Notification No. G.S.R. 149\(E\), 9th March, 2006](#)

[Ministry of Home Affairs](#)

[G.S.R. 149\(E\). - In exercise of the powers conferred by Section 87 of the Punjab Reorganisation Act, 1966 \(31 of 1966\), the Central Government hereby extends to the Union Territory of Chandigarh "The Punjab Agricultural Produce Markets \(Amendment\) Act, 2005 \(Punjab Act No. 12 of 2005\), as in force in the State of Punjab on the date of this notification subject to the following modifications, namely:-](#)

[Modifications](#)

[1.](#)

[In sub-section \(1\) of Section 1, for the words, brackets and figures "the Punjab Agricultural Produce Markets \(Amendment\) Act, 2005", the words, brackets and figures "the Punjab Agricultural Produce Markets \(Amendment\) Act,](#)

2005, as extended to the Union Territory of Chandigarh" shall be substituted.

2.

In Section 2, -

(i)

for the words and figures "the Punjab Agricultural Produce Markets Act, 1961", the words and figures "the Punjab Agricultural Produce Markets Act, 1961, as applicable in the Union Territory of Chandigarh" shall be substituted;

(ii)

in clause (b), the words "State Government" the words "Administrator, Union Territory of Chandigarh" shall be substituted.

3.

In Section 3, for the words "State Government" the words "Administrator, Union Territory of Chandigarh" shall be substituted.

Annexure

The Punjab Agricultural Produce Markets (Amendment) Act, 2005

(Punjab Act No. 12 of 2005)

An Act Further to amend the Punjab Agricultural Produce Markets Act, 1961

Be it enacted by the Legislature of the State of Punjab in the Fifty Sixth Year of the Republic of India as follows:-

1. Short title and commencement.

(1)

This Act may be called the Punjab Agricultural Produce Markets (Amendment) Act, 2005.

(2)

It shall come into force at once.

2. Amendment of Section 2 of Punjab Act, 23 of 1961.

- In the Punjab Agricultural Produce Markets Act, 1961 (hereinafter referred to as the Principal Act), in Section 2,-

"(a) in clause (1), for the words and sign "Principal markets yard and sub-market yard", the words and sign "principal market yard, sub-yard and private market yard," shall be substituted; and

(b)

after clause (n), the following clause shall be inserted namely:-

(nn)

"Private market yard" means an enclosure, building or locality other than the principal market yard or sub market yard in the notified market area, owned and operated by any person or company or co-operative society in accordance with the terms and conditions of a licence, granted by the State Government and where infrastructure has been developed by such person or company or co-operative society, as the case may be;

Explanation. - For the purpose of this clause, company shall mean a company incorporated under the Companies Act, 1956".

3. Substitution of Section 7 of Punjab Act 23 of 1961.

- In the principal Act, for Section 7, the following section shall be substituted namely:-

"7. Declaration of Market Yards. - (1) For each notified market area, there shall be one principal market yard, one or more sub-market yard, one or more sub-market yards and one or more private market yards as may be necessary.

(2)

The State Government may, by notification, declare any enclosure building or locality in any notified market area to be principal market yard for the area and other enclosures, buildings or localities to be one or more sub- market yards or one or more private market yards for the area.

(3)

Every person or company or co-operative society, as the case may be, desiring to obtain a licence for the private market yard, shall apply to such authority, in such manner and with such fee, as may be prescribed".

4.

Amendment in Section 8 of Punjab Act 23 of 1961.

- In the principal Act, in Section 8, for the words "On and after", the words "Save as otherwise provided in Section 7, on and after" shall be substituted.

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